

BEFORE THE DIRECTOR OF THE DIVISION OF REGISTRATIONS AND THE STATE
BOARD OF LICENSED PROFESSIONAL COUNSELOR EXAMINERS

STATE OF COLORADO

Case No. RG PC DLNQM

STIPULATION AND ORDER

IN THE MATTER OF DISCIPLINARY PROCEEDINGS REGARDING THE
CERTIFICATION TO PRACTICE ALCOHOL AND DRUG ABUSE COUNSELING AND
LICENSE TO PRACTICE PROFESSIONAL COUNSELING IN THE IN THE STATE OF
COLORADO OF ELON COHEN, LPC NO. 0006, CAC II CERTIFICATION NO. 4912,
Respondent.

IT IS HEREBY STIPULATED and agreed by and between the Director Division of
Registrations ("Director") and the State Board of Licensed Professional Counselor Examiners
("Board") and Elon Cohen, LPC, CAC II ("Respondent"), as follows:

1. The Director and the Board have jurisdiction over the person of respondent and the subject matter set forth in this stipulation and order.
2. The Respondent is a Licensed Professional Counselor in the State of Colorado and was first issued License No. 0006 by the Licensed Professional Counselors Board on May 26, 1989.
3. The Division of Registrations granted respondent a certification to practice drug and alcohol abuse counseling in Colorado on July 15, 1997. He holds certification number 4912.
4. Respondent has been certified to practice drug and alcohol abuse counseling and licensed as a professional counselor since the above referenced dates and was so certified and licensed at all times relevant to the events resulting in this stipulation and order.
5. On or about October 16, 2001, the Director and the Board received a complaint regarding respondent's practice, both as a drug and alcohol abuse counselor and as a licensed professional counselor, alleging practice below generally accepted standards, engaging in a dual relationship, and sexual contact with a client in violation of C.R.S. § 12-43-222 (1) (g), (k), and (r). All of these alleged actions are violations of the Colorado Mental Health Statute. The Board and Director could establish a prima facie case of a violation of the Colorado Mental Health Act and respondent could introduce evidence in rebuttal

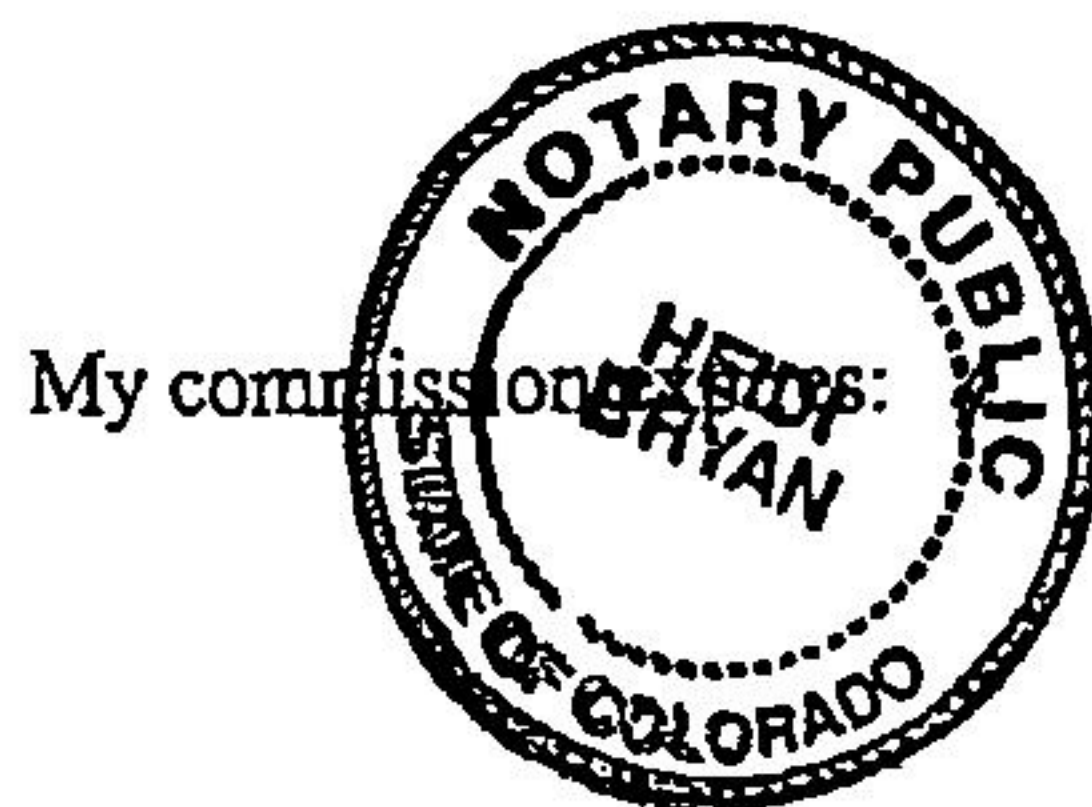
and mitigation of the Board and Director's case. The parties wish to avoid the time and expense of litigating this matter, and therefore agree to this Stipulation and Order.

6. Following review of the complaint, response, and investigation, the Director and the Board referred this matter to the Attorney General's office for disciplinary action regarding respondent's certification to practice drug and alcohol abuse counseling and license to practice professional counseling in Colorado.
7. Respondent understands he has the right to a formal disciplinary hearing, pursuant to C.R.S. § 12-43-224, with respect to the complaints filed against him. Respondent further understands and agrees that, by voluntarily and knowingly entering into this stipulation and order, he waives his right to a hearing; relieves the Director and the Board of their burden of proving the facts and conduct contained in the complaint; gives up his right to present a defense by oral and documentary evidence; and gives up his right to cross-examine witnesses. Respondent understands that, pursuant to C.R.S. § 12-43-224(5), he has the right to appeal the Director's and the Board's final order to the Court of Appeals. Respondent further understands and agrees that, by voluntarily and knowingly entering into this stipulation and order, he waives his right to appeal or otherwise to contest the validity of this final Director and Board order entered pursuant to this stipulation.
8. Respondent desires to resolve this matter by voluntarily surrendering his certification to practice drug and alcohol abuse counseling, and his license to practice professional counseling in Colorado. It is understood that the Director's and Board's order entered pursuant to this stipulation will revoke respondent's certification to practice alcohol and drug abuse counseling and license to practice professional counseling in Colorado and he will be rendered ineligible to apply for any certification, registration, or listing issued under Article 43, Title 12 of the Colorado Revised Statutes until more than three years have elapsed from the date of the surrender of certification and license, as provided in C.R.S. § 12-43-224(3)(a)(II).
9. Respondent agrees that he hereby freely and voluntarily relinquishes and surrenders his certification as an Alcohol and Drug Abuse Counselor and license to practice Professional Counseling in the State of Colorado.
10. Respondent enters into this stipulation and order voluntarily, and after being fully advised both as to his right to a hearing and as to the consequences of this stipulation and order.

11. This Director and Board order possesses the same force and effect as an order entered as a result of a formal disciplinary proceeding held pursuant to C.R.S. §§ 12-43-224 and 24-4-105, and it revokes Respondent's alcohol and drug abuse counseling certification and license to practice professional counseling and is considered an order of revocation.
12. No agreement, understanding, representation, or interpretation that is not expressly contained in this stipulation and order may be used to vary or to contradict its terms.
13. Each provision of this stipulation and order is separate. In the event of litigation involving compliance with the terms of this stipulation and order, the issues will be restricted to those issues raised by the interested parties; the resolution of those issues will affect only the pertinent parts of the stipulation and order; and the parties will be obligated by the Director-construed, Board-construed or judicially-constructed parts of the stipulation and order as if they were part of the original stipulation and order.
14. This stipulation and order shall take effect 30 days after acceptance and signature by the Director, the Board, and Respondent.
15. This stipulation and order is a public record.


Elon Cohen, LPC, CAC II

The foregoing was acknowledged before me this 5th day of July, 2002
by ELON COHEN, LPC, CAC II.




NOTARY PUBLIC

AGREED, SIGNED, AND ORDERED this 16th day of July, 2002.

DIRECTOR, DIVISION OF REGISTRATIONS

Rosemary McCool
ROSEMARY MCCOOL

LICENSED PROFESSIONAL COUNSELOR
EXAMINERS BOARD

BY: Thomas D. James

APPROVED AS TO FORM:

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